

Court No. - 39

Case :- WRIT - C No. - 19231 of 2023

Petitioner :- Anshuman Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kamlesh Kumar Tiwari

Counsel for Respondent :- C.S.C.,Rishu Mishra

Hon'ble Salil Kumar Rai,J.

Hon'ble Arun Kumar Singh Deshwal,J.

As prayed, put up this case on 7 July, 2023 as fresh.

Order Date :- 31.5.2023

Mukesh Pal

Court No. - 40

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kamlesh Kumar Tiwari

Counsel for Respondent :- C.S.C.,Rishu Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Sri Kamlesh Kumar Tiwari, learned counsel for the petitioner; learned Standing Counsel for the State respondent no.1 and Ms. Rishu Mishra, learned counsel for respondent nos.2 and 3.

2. By means of present writ petition the petitioner has challenged the impugned order dated 19.03.2022 passed by the President, District Electricity Consumer Grievances Redressal Forum, District Gorakhpur (respondent No.3) in Case No.64 of 2019 (Anshuman Singh vs. Executive Engineer). Further request is made to issue direction to the respondents not to initiate recovery proceeding of the electricity bill in pursuance of the order dated 19.03.2020.

3. Learned counsel for the respondents has raised a preliminary objection regarding maintainability of the present writ petition on the ground that against the impugned order the petitioner has got efficacious alternative remedy to approach the Electricity Ombudsman under clause 7.10 (4) of the Electricity Supply Code, 2005 and as such, the writ petition is liable to be dismissed on the ground of alternative remedy.

4. Learned counsel for the petitioner fairly states that leave may be accorded to the petitioner to approach the Electricity Ombudsman against the impugned order.

5. With the aforesaid leave, the present writ petition stands disposed of.

Order Date :- 14.7.2023

RKP